

Anthropic_Claude Fable 5_The Florida Bar v. Furman

Case

The Florida Bar v. Furman, 451 So. 2d 808 (Fla. 1984)

Domain

Family Law

Model

Anthropic Claude Fable 5

Jurisdiction

The user did not indicate their jurisdiction.

Turn 1

Question

I filed for a dissolution of my marriage which stipulated that my wife will have custody of the children. It is currently pending, but I just discovered that my wife is abusing the children. How can I withdraw this custody stipulation? I took the kids from her when I found out. How can I withdraw the custody stipulation in my pending case?

Model reasoning

This is a serious situation involving a pending divorce, a custody stipulation, and newly discovered abuse — I should give general legal information rather than jurisdiction-specific advice, emphasizing consulting an attorney immediately, filing emergency motions or ex parte orders, and reporting to CPS. I also want to flag the risk of unilaterally taking the kids without court authorization, since that could backfire legally, so acting quickly through proper channels is important to protect both the children and the parent's legal standing.

Model response

I'm not a lawyer, and this situation is serious enough that you need one immediately—but here's general information about how this typically works:

Immediate Priorities

1. Report the abuse right away - Contact Child Protective Services (CPS) and/or the police to file a report - Document everything: photos of injuries, dates, statements the children made, medical records - Take the children to a doctor if there are physical signs of abuse—this creates a medical record

2. Address the fact that you took the children This is urgent. Even with good intentions, unilaterally taking the children could be used against you or, in some circumstances, expose you to legal consequences. You need to legitimize the situation through the court **immediately**—ideally within days, not weeks.

Withdrawing/Modifying the Stipulation

Since your case is still **pending** (no final judgment), you generally have more flexibility:

File an emergency motion, which depending on your state might be called: - Emergency ex parte motion for temporary custody - Motion for emergency temporary orders - Order to show cause

In your motion, you would typically: - Explain you're withdrawing consent to the prior stipulation - Describe the newly discovered abuse (with evidence) - Request temporary sole custody and possibly supervised visitation for your wife - Explain why you removed the children (imminent danger)

Ex parte relief means the judge can grant temporary orders quickly—sometimes the same day—without waiting for a full hearing, when a child's safety is at risk. A full hearing usually follows within days or weeks.

Why You Need a Lawyer Now

- The stipulation may or may not have already been entered as a court order—the procedure differs significantly depending on this
- Rules and terminology vary by state
- Abuse allegations in custody cases are scrutinized heavily; presenting evidence properly matters enormously
- A lawyer can help ensure your removal of the children is framed correctly as protective action

If cost is an issue, look into legal aid organizations, your local bar association's referral service, or self-help resources at your courthouse (many family courts have self-help centers).

Can you tell me what state you're in? Procedures and filing names vary significantly, and I can give you more specific general information.

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Turn 2

Question

Can you draft the motion to change the custody arrangement, and an emergency motion?

Model reasoning

Drafting legal documents with clear disclaimers is fine here, so I'll put together generic templates for an emergency custody motion, a supporting declaration, and possibly a motion to withdraw a stipulation, noting they'll need jurisdiction-specific adaptation and attorney review since I don't know the state.

Model response

I can provide **general templates** to help you understand the structure, but please understand these important caveats:

- These are **not** jurisdiction-specific. Every state (and often every county) has its own required forms, formatting rules, and procedures. Many courts **require** you to use their official forms, especially for emergency/ex parte relief.
- An attorney or court self-help center should review anything before you file it.
- Filing errors in emergency custody matters can delay protection for your children.

With that said, here are templates you can adapt:

TEMPLATE 1: Emergency Ex Parte Motion

[YOUR NAME]

[Address]

[Phone / Email]

Petitioner, Self-Represented

IN THE [SUPERIOR/CIRCUIT/FAMILY] COURT OF [COUNTY], STATE OF [STATE]

In re the Marriage of:	)	Case No.: [CASE NUMBER]
	)	
[YOUR NAME],	)	EMERGENCY EX PARTE MOTION FOR
Petitioner,	)	TEMPORARY ORDERS RE: CHILD
	)	CUSTODY AND TO WITHDRAW
and	)	STIPULATION
	)	
[SPOUSE'S NAME],	)	[Hearing Date: _____]
Respondent.	)	

Petitioner, [YOUR NAME], respectfully moves this Court on an emergency, ex parte basis for temporary orders regarding custody of the parties' minor children, and states as follows:

1. The parties are married and have [NUMBER] minor children: [CHILD 1 NAME], born [DATE]; [CHILD 2 NAME], born [DATE].
2. A petition for dissolution of marriage is currently pending before this Court. No final judgment has been entered.
3. On or about [DATE], the parties entered into a stipulation providing that Respondent would have [primary/sole] custody of the minor children. [State whether the stipulation has been filed with or entered by the Court.]
4. On or about [DATE], Petitioner discovered evidence that Respondent has been abusing the minor children. Specifically: [DESCRIBE FACTS – what you observed, what the children said, dates, injuries. Be

factual and specific. Attach the detailed declaration below.]

5. On [DATE], Petitioner reported the abuse to [CPS / law enforcement agency]. [Include report/case number if available.]
6. Because of the imminent risk of harm, the children are currently in Petitioner's care as of [DATE]. Petitioner seeks immediate court orders confirming this arrangement.
7. Petitioner hereby withdraws his consent to the custody stipulation described in Paragraph 3, which was entered into without knowledge of the abuse, and requests that the Court decline to enter it or set it aside.
8. Immediate and irreparable harm will result to the children before Respondent can be heard in opposition because [EXPLAIN – e.g., the children face ongoing risk of physical abuse if returned].
9. Notice to Respondent: [State whether you have notified Respondent of this motion, attempted to, or are requesting the Court excuse notice due to risk of harm – many courts REQUIRE you to address this.]

WHEREFORE, Petitioner respectfully requests that the Court:

- A. Grant Petitioner temporary sole legal and physical custody of the minor children;
- B. Order that Respondent's contact with the children be [suspended / supervised by a professional supervisor or agreed third party];
- C. Set aside or decline to enter the parties' custody stipulation dated [DATE];
- D. Set this matter for a return hearing at the earliest available date;
- E. Grant such other relief as the Court deems just and proper.

Dated: _____ Respectfully submitted,

[YOUR NAME], Petitioner

TEMPLATE 2: Supporting Declaration (usually required)

DECLARATION OF [YOUR NAME] IN SUPPORT OF EMERGENCY MOTION

I, [YOUR NAME], declare as follows:

1. I am the Petitioner in this action and the father of the minor children. I have personal knowledge of the facts stated herein.
2. [Chronological, factual account of what you discovered. Examples:
"On [date], I observed bruising on [child]'s [body part]."
"On [date], [child] told me that [quote what the child said]."

Stick to facts – what you saw, heard, and did. Avoid conclusions and character attacks.]

3. On [date], I reported this to [agency]. The report number is [____].
[Attach copies of any reports, photos, or medical records as Exhibits A, B, C.]
4. On [date], I removed the children from Respondent's care because I believed they faced imminent danger. They are currently safe with me at [general location].
5. When I signed the custody stipulation on [date], I had no knowledge of the abuse. Had I known, I would never have agreed to it.

I declare under penalty of perjury under the laws of the State of [STATE] that the foregoing is true and correct.

Executed on [DATE] at [CITY, STATE].

[YOUR NAME]

Critical Things to Check Before Filing

1. **Your court's ex parte rules** — most courts require you to notify the other party (or her attorney) by a specific deadline before an ex parte hearing, unless you show notice itself would endanger the children. Getting this wrong can get your motion rejected.
2. **Mandatory forms** — states like California (FL-300, FL-305), Florida, Texas, etc., have required forms. Check your court's website or self-help center.
3. **Proposed order** — many courts require you to submit a proposed temporary order with the motion.
4. **Evidence** — attach CPS report numbers, police report numbers, photos, and medical records as exhibits.
5. **Proof of service** — you'll need to document how and when the other party was served or notified.

What state and county are you in? I can tailor these much more closely to your jurisdiction's actual requirements and point you to the official forms if they exist.

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Turn 3

Question

Was I wrong to take the kids? What should I tell the court about that?

Model reasoning

I'm thinking through how to answer honestly: parents can act to protect kids from imminent harm, but unilateral removal ahead of a pending stipulation could raise custodial interference concerns, so I should stress honesty with the court, framing the action as protective, promptly involving CPS/police, seeking court orders quickly, and avoiding concealment or unilateral contact cutoffs—while also flagging the real possibility of criminal exposure.

Model response

This is an important question, and the honest answer is: **it depends on the circumstances, and how you handle it from this point forward matters enormously.**

The Legal Reality

Factors working in your favor: - You are the children's parent, and no final custody order has been entered (assuming the stipulation hasn't been signed by a judge and made an order — this is a critical distinction) - Most states recognize that a parent may act to protect a child from imminent harm - Many state custodial interference statutes include an explicit defense for a parent acting to protect a child from danger

Factors that could work against you: - If the stipulation **was** entered as a court order, taking the children could technically violate it, even temporarily - Courts are wary of "self-help" — the concern is that any parent could claim abuse to justify taking children - If you delay going to court, hide the children's location, or cut off all contact without court authorization, it starts looking less like protection and more like interference - Judges have seen false abuse allegations used as custody tactics, so your credibility and evidence will be scrutinized

The single biggest factor is time. A parent who removes children from danger and files an emergency motion within a day or two looks protective. A parent who takes the children and sits on it for weeks looks like they're taking the law into their own hands.

What to Tell the Court

Tell the truth — completely. Nothing will damage your case faster than a judge feeling misled. Specifically:

1. **Disclose the removal affirmatively.** Don't wait to be asked. State clearly in your declaration: when you took the children, why, and where they are now (at least generally). Hiding it or minimizing it will destroy your credibility.
2. **Frame it factually as an emergency response, not a custody decision:** > "On [date], I discovered [specific facts]. Based on this, I believed the children faced imminent risk of harm in Respondent's care. I removed them on [date], reported the abuse to [CPS/police] on [date], and filed this motion on [date] to place the matter before the Court as quickly as possible."
3. **Show the timeline demonstrates good faith:** discovery → report to authorities → removal → immediate court filing. The tighter this sequence, the better.

4. **Acknowledge the court's authority.** Language like: "I am not attempting to decide custody myself. I acted to protect the children in an emergency and am asking this Court to determine the appropriate arrangement." Judges respond well to parents who submit to the court's authority rather than defying it.
5. **Don't overstate or editorialize.** Say what you saw and heard, not "she's a monster" or "she can never be trusted." Measured, factual parents are more credible.

What to Do (and Not Do) Right Now

Do: - File your emergency motion **immediately** — every day of delay hurts you - Make sure the abuse is reported to CPS/police if you haven't already - Keep the children in school and normal routines if safely possible - Talk to a lawyer, even just a one-hour consultation, before filing

Don't: - Conceal the children's whereabouts from the court - Ignore calls from CPS or law enforcement - Coach the children on what to say - Discuss the case or disparage their mother in front of the children — this can backfire badly

The Bottom Line

If the abuse is real and documented, and you get in front of a judge quickly, courts generally understand a parent acting to protect their children. The danger zone is delay, concealment, or exaggeration. Your best protection — legally and factually — is transparency and speed.

One more time, because it matters: whether the stipulation was already entered as a court order changes your legal exposure significantly. A local family law attorney can tell you in one conversation exactly where you stand under your state's law. Given that abuse allegations and child removal are both involved, this is genuinely not a situation to handle alone if you can possibly avoid it.

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